"… the Foundation retained the benefit of all of Plaintiff's work: the IID approval, the engineering designs, the regulatory relationships, the governmental goodwill, and all documentation prepared by Plaintiffs. (FAC, pg. 9:19-21.)

"Appropriating for the Foundation's exclusive benefit the IID approval, the engineering work product, the regulatory and political relationships, and the entire value of Plaintiffs' year-long investment, while terminating Plaintiffs without compensation…." (FAC, 25:4-6.)

Defendant argues that these allegations must be stricken because they concern relief based on "the results of protected communications, submissions, meetings, and advocacy directed to IID and other public official during the substation approval process." (MPA iso Motion, 15:12-17.) Here, not only has Defendant failed to show that such request for relief concerns protected activities, but Defendant also misconstrues the function of the special motion under the anti-SLAPP statute. A claim is subject to an anti-SLAPP motion only if the conduct constituting the protected activity "itself is the wrong complained of." (*Park v. Board of Trustees of Calif. State Univ., supra,* 2 Cal.5th at 1060.) The allegation that Defendant retained benefits of Plaintiffs' labor is not itself an allegation of a protected activity. Moreover, prayer for relief made in pleading are not causes of action that could be subject to the special motion to strike under anti-SLAPP statute because it is a remedy and not a separate claim. (*See Marlin v. Amico Venezia, LLC* (2007) 154 Cal.App.4th 154 [injunction is a remedy, not a cause of action].)

Based on the foregoing, because Defendant has not demonstrated that the defamation action is based on any protected activity, Defendant has failed to meet its initial burden. Therefore, the analysis stops here, and no burden shifts to Plaintiffs to satisfy the second prong of the anti-SLAPP motion.

Plaintiff's Evidentiary Objections: DECLINE to RULE, not material to the analysis of this motion.

Plaintiff's Request for Judicial Notice GRANTED as to items 1-7 GRANTED.

Defendant's Evidentiary Objections: DECLINE to RULE, not material to the analysis of this motion.

Defendant's Anti-SLAPP Motion DENIED.

Case Management Conference confirmed for October 8, 2026

3.

CASE #	**CASE NAME**	**HEARING NAME**
CVPS2602661	DEVECCHI VS KIA AMERICA, INC.	HEARING RE: MOTION TO STRIKE COMPLAINT OF ROBERT DEVECCHI BY KIA AMERICA, INC.

Tentative Ruling: "[A] motion to strike is generally used to reach defects in a pleading which are not subject to demurrer." (*Pierson v. Sharp Memorial Hospital, Inc.* (1989) 216 Cal.App.3d 340, 342.) A motion to strike may be brought to strike the portion of a pleading on the grounds that that pleading contains "irrelevant, false, or improper matter" or "*not* *drawn in conformity with California law."* (CCP §§ 436(a) & (b), italics added.) As with a demurrer, "[t]he grounds for a motion to strike shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice" or "based on matter of which the court may take judicial notice…" (*Id*., § 437(a), (b).)

"Irrelevant matter" as used in section 436 for a motion to strike shares the same meaning as "immaterial allegation" as defined by section 431.10. (*Id*., § 431.10(c).) The Code defines "immaterial allegation" as one of the following: (1) "An allegation that is not essential to the statement of a claim or defense"; (2) "An allegation that is neither pertinent to nor supported by an otherwise sufficient claim or defense"; or (3) "A demand for judgment requesting relief not supported by the allegations of the complaint or cross-complaint." (*Id*., § 431,(b)(1)-(3).)

CCP §871.20(a) provides that Chapter 12 applies to an action "brought against a manufacturer who has elected under Section 871.29 to proceed under this chapter, seeking restitution or replacement of a motor vehicle… or for civil penalties pursuant to subdivision (c) of Section 1794 of the Civil Code, where the request for restitution or replacement is based on noncompliance with the applicable express warranty."

Plaintiff's action falls within that description. Plaintiff alleges that Defendant failed to conform the vehicle to its express warranty after a "reasonable number of opportunities to do so" and failed "to promptly repurchase or replace the Vehicle." (Compl., ¶¶ 21-22.) Plaintiff seeks restitution and a §1794(c) civil penalty. (*Id*., ¶¶ 26, 29; prayer for relief, ¶¶ 2, 8.)

Plaintiff relies on §871.20(b), which states that Chapter 12 "does not apply to service contract claims under Section 1794 of the Civil Code or any action seeking remedies that are not restitution or replacement of a motor vehicle." Plaintiff therefore argues that the entire action falls outside of Chapter 12 because the complaint also seeks incidental and consequential damages, actual and statutory damages, and prejudgment interest. (Compl., prayer for relief, ¶¶ 3-5.)

Section 871.20(a) covers actions seeking §1794(c) civil penalties. Reading subdivision (b) to exempt an entire action whenever a plaintiff adds routine requests for incidental damages or interest would nullify subdivision (a). It would also permit a plaintiff to avoid Chapter 12 through the prayer.

The larger issue is the notice requirement. Civ. Code §1794(c) permits a civil penalty if the failure to comply with the Song-Beverly Act was willful. Effective July 1, 2025, the Legislature enacted a new requirement, i.e. the consumer must, at least 30 days before commencing an action seeking civil penalties, notify the manufacturer and demand that the manufacturer repurchase or replace the motor vehicle. (CCP § 871.24 (a).)

Section 871.24(e)(1) provides:

> A request for or action seeking civil penalties under subdivision (c) of Section 1794 of the Civil Code ***shall not be allowed or maintained*** if both of the following conditions are present:

> (A) Within 30 days after receipt of the notice, the manufacturer makes an offer of restitution or replacement of the motor vehicle for the amount provided by subdivision (d) of Section 1793.2 of the Civil Code and Section 871.27, plus reasonable attorney's fees and costs, if the consumer is represented by an attorney.
>
> (B) The motor vehicle replacement or restitution is completed within 60 days from the date of receipt of the original notice.

Furthermore, section 871.24(h) provides:

> An action seeking restitution or replacement under Section 871.20 may be commenced without compliance with subdivision (a). In that event, the consumer shall have possession of the motor vehicle at the time of the filing of the complaint, and shall not seek civil penalties, whether by amendment of the complaint or otherwise. If, however, notice is provided pursuant to subdivision (a) and the manufacturer fails to comply with their obligations under subdivision (e), the consumer may commence an action for restitution or replacement, including, but not limited to, civil penalties under subdivision (c) of Section 1794 of the Civil Code.

In short, the statute gives two procedural options: (1) to provide pre-suit notice and preserve a potential §1794(c) penalty claim, or (2) to file immediately for restitution or replacement but may not seek that penalty.

In interpreting a statute, the court looks to ascertain the Legislature’s intent. (*LGCY Power, LLC v. Superior Court* (2022) 75 Cal.App.5th 844, 860.) The court first looks to the plain meaning, then the legislative history, and finally to the reasonableness of the proposed construction. (*Ibid.*)

The plain language of §871.24(a) and (h) makes notice a prerequisite to seeking a section 1794(c) penalty. The legislative history confirms that the Legislature intended to establish a prelitigation process through which manufacturers would receive notice and a chance to resolve repurchase/replacement claims before consumers sought civil penalties.

The legislative history indicates the following:

> Given California’s prevalent car culture, the state’s lemon law statutes are a foundational consumer protection for millions of Californians. Unfortunately, in recent years a flurry of civil actions have been filed under the lemon law statutes and now discovery disputes and protracted settlement processes are serving to delay the court’s processing of these cases. As a result, California consumers are being denied justice and automobile manufacturers are facing significant legal uncertainty.

> AB 1755 is a compromise measure between consumer advocates and automobile manufacturers that seeks to break the civil litigation log jam currently plaguing lemon law disputes. First, this measure provides for clear prelitigation procedures that seeks to protect consumers, provide clarity for automakers, and resolve disputes without ever requiring litigation. Secondly, this measure adopts a streamlined discovery process for cases that do get filed and encourages the use of mediation to resolve cases in a timely manner. Finally, the bill adopts consumer protections to ensure timely compliance with lemon law settlements.
>
> AB 1755 strengthens the consumer protections of the lemon law statutes, provides equity and fairness for all parties to a lemon law dispute, and ensures timely access to justice for California consumers.

(Sen. Com. on Judiciary, Analysis of Assem. Bill No. 1755 (2023-2024 Reg. Sess.) as amended Aug. 26, 2024.) The purpose was to streamline and provide clarity.

Here, this demonstrates an intent of the Legislature to require compliance with the pre-lawsuit notice requirement to maintain an action. Other similar pre-lawsuit notices have been required to be pled, despite nothing in the statutes specifically requiring it to be pled. (See e.g., *Lafferty v. Wells Fargo Bank* (2013) 213 Cal.App.4th 545, 565 [CLRA notice sufficiently pled under Civ. Code §1782].)

The complaint here does not allege that Plaintiff gave Defendant the required written notice under §871.24. Critically, the complaint's dates shows that Plaintiff could not have given notice at least 30 days before filing.

Plaintiff alleges that Plaintiff purchased the vehicle on March 5, 2026. (Compl., ¶ 4.) Plaintiff then filed the complaint on March 24, 2026, only 19 days later. Section 871.24(c) also requires the consumer to "have possession of the motor vehicle" when sending the notice. Thus, Plaintiff could not have possessed the vehicle and provided Defendant with compliant notice at least 30 days before filing this action. Here, the complaint does not allege the required notice. Moreover, the face of the complaint shows that Plaintiff commenced the action without even completing the statutory notice period. Because §871.24 also requires the consumer to *possess* the vehicle when giving notice, Plaintiff could not have provided compliant notice at least 30 days before filing.

Plaintiff's remaining arguments concern the manufacturer's repurchase duty. By contrast, §871.24 concerns the procedure a consumer must follow to seek a §1794(c) penalty. Plaintiff's reliance on Civ. Code §1794(e) also does not cure the deficiency. Here, ¶¶ 29, 37, and 45 pleads subdivision (c), but not (e).

Defendant's Request for Judicial Notice GRANTED.

Defendant's Motion to Strike ¶ 29, lines 4-5; ¶ 37, lines 27-28; ¶ 45, lines 19-20 and ¶ 8 of the Prayer, line 10 is GRANTED with leave to amend.

Plaintiff may file an amended complaint within 15 days.

Case Management Conference confirmed for October 19, 2026.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2602665	CREDITORS ADJUSTMENT BUREAU, INC., VS SOLIDIFIED GC LLC	HEARING RE: MOTION TO SET ASIDE DEFAULT ON COMPLAINT OF CREDITORS ADJUSTMENT BUREAU, INC., BY SOLIDIFIED GC LLC

Tentative Ruling: A motion pursuant to CCP 473(b) must be filed within six months of the clerk's entry of default and also within a "reasonable time" after discovery of the default. (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 234.) A delay of three or more months or more is an unofficial standard under which courts will routinely deny relief unless there is a satisfactory explanation for the delay. (*Stafford v. Mach* (1998) 64 Cal.App.3d 1174, 1184.) The time runs from the entry of the default, not the default judgment. (*Pulte Homes Corp. v. Williams Mechanical, Inc.* (2016) 2 Cal.App.5th 267, 273.) The court is empowered to relieve a party "upon any terms as may be just … from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect." (C.C.P. §473(b).) Because the law favors judgments on the merits, "doubts must be resolved in favor of relief…." (*Lasalle v. Vogel* (2019) 36 Cal.App.5th 127, 134.)

A court has inherent, equitable power to set aside a judgment on the ground of extrinsic fraud or mistake. (*Bae v. T.D. Service Co. of Arizona* (2016) 245 Cal.App.4th 89, 98.) There are three essential requirements to obtain relief. The party in default must show a meritorious defense, a satisfactory excuse for not presenting a defense to the original action, and diligence in seeking to set aside the default once it was discovered. (*Rappleyea*, 8 Cal.4th 975, 982.) Relief is generally available only for "extrinsic fraud or mistake," but it does not require fraud or mistake in the strict sense—the terms "tend to encompass almost any set of extrinsic circumstances which deprive a party of a fair adversary hearing." (*In re Marriage of Park* (1980) 27 Cal.3d 337, 342.) "Extrinsic fraud occurs when a party is deprived of the opportunity to present a claim or defense to the court as a result of being kept in ignorance or in some other manner being fraudulently prevented by the opposing party from fully participating in the proceeding," while "'[e]xtrinsic mistake is found when [among other things] ... a mistake led a court to do what it never intended....'" (*County of San Diego v. Gorham* (2010) 186 Cal.App.4th 1215, 1228-1229.) But "extrinsic fraud and extrinsic mistake are unavailable when a party's own negligence allows the fraud or mistake to occur." (*Kramer v. Traditional Escrow, Inc.* (2020) 56 Cal.App.5th 13, 29.) And the fraud or mistake must be extrinsic rather than intrinsic, in the sense that the party must have been denied the opportunity to be heard. If the fraud or mistake goes to the merits of the action, or occurred at trial, it is deemed "intrinsic" and not ground for relief. (*In re Marriage of Thorne & Raccina* (2012) 203 Cal.App.4th 492, 505.) "[I]f a party has been given notice of an action and has not been prevented from participating therein," relief must be denied because "[h]e has had an opportunity to present his case to the court and to protect himself from mistake or from any fraud attempted by his adversary." (*Kulchar v. Kulchar* (1969) 1 Cal.3d 467, 472.)